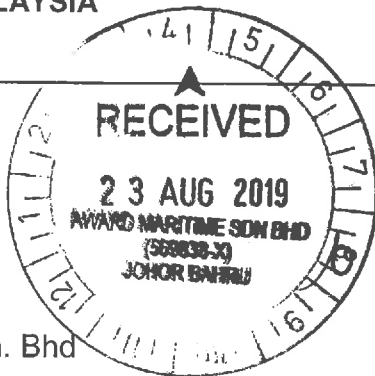




JABATAN LAUT MALAYSIA
IBU PEJABAT LAUT
PETI SURAT 12, JALAN LIMBUNGAN
42007 PELABUHAN KLANG
SELANGOR DARUL EHSAN
MALAYSIA



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Ruj Tuan: 2019/06/AM0156
Ruj Kami: (15)dIm.IPL.2260-A.Jld.57
Tarikh : 19 Ogos 2019

Ahmad bin Ismail

Pengarah

Award Maritime Sdn. Bhd

Plot D12, Jalan Tanjung A/2, Kawasan Zon Bebas

Pelabuhan Tanjung Pelepas

81560 GELANG PATAH, JOHOR

Faks: 07-5071066

Tuan,

**PERMOHONAN PEMBAHARUAN TEMPOH KEBENARAN MENJALANKAN AKTIVITI
'SHIP TO SHIP TRANSFER' (STS) DALAM HAD PELABUHAN TANJUNG PELEPAS
(PTP), JOHOR**

- **Pelanjutan Kebenaran Operasi Menjalankan Aktiviti *Ship To Ship Transfer* (STS) Di Dalam Had Pelabuhan Tanjung Pelepas, Johor Kepada Syarikat Award Maritime Sdn. Bhd**

Saya merujuk kepada surat tuan bertarikh 1 Julai 2019 berhubung perkara tersebut di atas. Hasil Keputusan Perbincangan Bersama YB Menteri Pengangkutan Mengenai Perkembangan Dan Hala Tuju Dasar *Ship To Ship Transfer* (STS) bertarikh 4 Julai 2019 juga adalah berkaitan.

2. Adalah dimaklumkan bahawa Jabatan ini **tiada halangan** untuk melanjutkan kebenaran operasi terhadap permohonan pihak syarikat untuk menjalankan operasi STS di dalam Had Pelabuhan Tanjung Pelepas, Johor.
3. Pihak syarikat hanya dibenarkan menjalankan operasi STS di dalam kawasan yang ditetapkan merangkumi koordinat-koordinat seperti berikut:

Titik	Latitud (U)	Longitud (T)
Lokasi A		
A	1° 14.62'	103° 32.85'
B	1° 14.55'	103° 33.33'
C	1° 14.05'	103° 33.26'
D	1° 14.15'	103° 32.78'
Lokasi B		
A	1° 14.86'	103° 33.38'
B	1° 14.86'	103° 33.83'
C	1° 13.88'	103° 33.22'
D	1° 13.75'	103° 33.63'

4. Pelanjutan Kebenaran Operasi ini adalah bermula dari **20 November 2019 sehingga 19 November 2021**. Pihak syarikat juga dikehendaki mematuhi syarat-syarat terperinci seperti yang terkandung dalam *Conditions of Approval* (COA) dan syarat-syarat tambahan yang ditetapkan seperti berikut:

- i. Hanya satu (1) atau dua (2) kapal sahaja dibenarkan merapat ke kapal induk (*on port or starboard or 1 on both*) dalam satu-satu masa untuk tujuan STS di kawasan yang diluluskan;
- ii. Membuat laporan kepada Jabatan Laut Malaysia Wilayah Selatan sekurang-kurangnya 48 jam sebelum setiap operasi STS dijalankan;
- iii. Kapal hendaklah mewujudkan satu sistem komunikasi seawal yang boleh bagi merancang aktiviti STS;

- iv. Melantik *Person in Overall Advisory Control* (POAC) daripada kalangan rakyat tempatan yang disahkan oleh Jabatan Laut Malaysia Wilayah Selatan dan hendaklah sentiasa bersedia di atas kapal ketika operasi STS;
- v. Menggunakan khidmat *Pilot* daripada kalangan rakyat tempatan yang telah berdaftar dengan Jabatan Laut Malaysia;
- vi. Minimum satu (1) buah atau lebih *tug boat* berdaftar bendera Malaysia mengikut keperluan malim hendaklah sentiasa disediakan sebagai *standby tug* sepanjang setiap operasi dijalankan;
- vii. Minimum dua (2) buah atau lebih *tug boat* berkapasiti sekurang-kurangnya 40 tan *bollard pull* berdaftar bendera Malaysia digunakan untuk tujuan *berthing & unberthing* mengikut keperluan malim bagi setiap operasi;
- viii. Pasukan *Emergency Response* yang dilantik daripada kalangan kontraktor tempatan hendaklah sentiasa bersedia untuk sebarang keadaan kecemasan;
- ix. Enjin Utama dan krew kapal induk perlu sentiasa bersedia untuk sebarang olahgerak atau keadaan kecemasan;
- x. Operasi STS hendaklah dihentikan sekiranya:
 - Ketinggian ombak melebihi dua (2) meter secara berterusan
 - Kelajuan angin melebihi 30 knots secara berterusan
 - Jarak kenampakan kurang dari dua (2) batu nautika

- xi. Syarikat juga dikehendaki sentiasa mematuhi garis panduan (*STS Transfer Guide*) yang dikeluarkan oleh badan-badan pertubuhan antarabangsa yang berkaitan.

5. Jabatan ini juga boleh menjalankan auditan pada bila-bila masa yang dikehendaki sepanjang operasi STS tersebut dijalankan. Sebarang ketidakpatuhan terhadap syarat-syarat yang telah ditetapkan akan membolehkan kebenaran pelanjutan ini ditarik balik. Jabatan ini turut boleh meminda syarat-syarat terperinci seperti yang terkandung dalam *Conditions of Approval* (COA) dan syarat-syarat tambahan seperti di para 4 surat ini pada bila-bila masa.

6. Adalah turut dimaklumkan bahawa **Surat Pelanjutan Kebenaran Operasi** ini boleh **ditarik balik pada bila-bila masa dan akan terbatal** setelah JLM mengeluarkan notis pemakluman Dasar Baru Operasi STS telah berkuatkuasa kelak.

7. Surat ini tidak mengikat Kerajaan dengan Syarikat Award Maritime Sdn. Bhd dalam apa bentuk sekalipun. Sebarang kos atau implikasi kewangan yang berbangkit susulan tindakan-tindakan yang diambil oleh Syarikat Award Maritime Sdn. Bhd pada sebelum, semasa, dan selepas operasi STS dijalankan adalah tanggungjawab Syarikat Award Maritime Sdn. Bhd sepenuhnya tanpa membuat sebarang tuntutan kepada Kerajaan jika Surat Pelanjutan Kebenaran Operasi ini ditarik balik.

Sekian, terima kasih.

“BERKHIDMAT UNTUK NEGARA”

Saya yang menjalankan amanah,



(DATO' HAJI BAHARIN BIN DATO' ABDUL HAMID)

Ketua Pengarah Laut

Jabatan Laut Malaysia.

Salinan kepada –

Ketua Setiausaha

Kementerian Pengangkutan Malaysia

Aras 8, Bahagian Maritim

No.26, Jalan Tun Hussien

Presint 4

62100 PUTRAJAYA

(U.P. TUAN KAPTEN MOHAMED HALIM BIN AHMAD)

Faks: 03-88880179

Pengurus Besar

Lembaga Pelabuhan Johor

Jalan Mawar Merah 2

Pusat Perdagangan Pasir Gudang 2

81700 PASIR GUDANG, JOHOR

Faks: 07-251 7684

Edaran dalaman –

1. YBhg. Dato' Timbalan Ketua Pengarah Laut I (Perancangan)
2. YBrs. Timbalan Ketua Pengarah II (Operasi)
3. Tuan Pengarah Bahagian Pelabuhan, Logistik, dan Perdagangan, IPL
4. Tuan Pengarah Bahagian Operasi Maritim, IPL
5. Tuan Pengarah Laut Wilayah Selatan

**CONDITIONS OF APPROVAL FOR SHIP-TO-SHIP (STS) TRANSFER OF LIQUID BULK
CARGOES COMPRISING OF MARINE DIESEL FUEL, FUEL OIL, CRUDE OIL, AND GAS OIL
ONLY**

For this purpose,

1

‘STS Operator’ means **AWARD MARITIME SDN. BHD**

The approval to conduct ship-to-ship transfer operation for the STS Operator shall apply only to principle storage unit P.O.R only.

The approval to conduct ship-to-ship transfer operation shall valid from 20 November 2019 until 19 November 2021. The STS Operator may request for extension of the period to the Marine Department at least six (6) months prior to the expiry date.

1. Designated Area.

Every ship-to-ship transfer operation shall be conducted in the area designated by the Marine Department. The mother vessel used for ship-to-ship transfer shall be anchored within the port at:

Location A:

Latitude 1° 14.62' N and Longitude 103° 32.85' E;
Latitude 1° 14.55' N and Longitude 103° 33.33' E;
Latitude 1° 14.05' N and Longitude 103° 33.26' E; and
Latitude 1° 14.15' N and Longitude 103° 32.78' E.

Location B:

Latitude 1° 14.86' N and Longitude 103° 33.38' E;
Latitude 1° 14.86' N and Longitude 103° 33.83' E;
Latitude 1° 13.88' N and Longitude 103° 33.22' E; and
Latitude 1° 13.75' N and Longitude 103° 33.63' E.

2. Types of Operation.

For this purpose, the type of ship-to-ship transfer operation permitted shall be limited only for transshipment of liquid bulk cargoes comprising of Marine Diesel Oil, Fuel Oil, Crude Oil, and Gas Oil. No other cargoes especially liquid chemical in bulk shall be allowed in the ship-to-ship transfer operation.

3. Types of Vessel Allowed (To be revised).

Only the following types of vessel, as defined under International Convention For The Prevention Of Oil Pollution From Ships, 1973 as modified by the protocol of 1978 (MARPOL 73/78) are permitted to conduct ship-to-ship operation-

- a) Newly build tanker fully compliance with Regulation 21 of MAPROL 73/78;
- b) Oil tanker that meets the requirements of Regulations 21.5 and 21.6 MARPOL 73/78;
- c) Single hull double bottom vessel fully complied with Condition Assessment Scheme or CAS (MEPC 94(46)); or
- d) Floating Storage Unit (FSU), Floating Storage and Offloading (FSO) or Floating Production Storage and Offloading (FPSO) as floating storage facilities.

4. Responsibility of the STS Operator.

4.1. The STS Operator shall submit to the Marine Department the following documents and manuals-

- .1 Detailed list of its Service Provider(s) including details of equipment (state in detail the type, number and purpose of each equipment), services provided, personnel and vessel used;
- .2 Ship-to-Ship operation manual;

- .3 List of vessels used for this operation (including standby vessels and tugs);
- .4 Qualification and curriculum vitae of pilots, mooring masters and loading masters (Please state also whether they are Malaysian citizens or Malaysian Work Permit holders);
- .5 Vessel's Shipboard Oil Pollution Emergency Plan (SOPEP) and contingency plan to control and mitigate accidental discharges; and
- .6 Ship-to-ship guide issued by International Chamber of Shipping (ICS) and Oil Companies International Maritime Forum (OCIMF).

4.2. The Operator shall be ultimately responsible for the following:

- .1 To utilize local resources, contractors and agents to provide all necessary services to the operations.
- .2 All foreign workers and seafarers involved in STS operations on FSO shall be Malaysian or Malaysian Work Permit Holder only. Due to the nature of FSO as terminal, the Article Agreement on foreign seafarers working in Malaysian water must be complemented with a valid Malaysian Work Permit.
- .3 To ensure all participating vessels in the ship-to-ship transfer operations comply with all statutory regulations under national regulations and IMO Conventions.
- .4 All vessels involved with ship-to-ship transfer operation are required to pay all relevant port and light dues. The Operator will ultimately be responsible for any non-payment of any fees and dues owed by any ship involved with ship-to-ship transfer operation.
- .5 Compliance to all conditions as specified in this approval.
- .6 Updating of document and notification requested.

- .7 Ensuring participating vessels in the ship-to-ship transfer operation comply with all recommendations as stated in ICS and OCIMF Ship-to-Ship Transfer Guide.
- .8 To provide all services, equipments and personnel that has been committed in the manuals, operations guidelines and relevant documents.

5. Compliance of Vessel.

5.1. All vessels involved in the ship-to-ship transfer operations shall comply with -

- .1 the relevant requirements of the Merchant Shipping Ordinance 1952 and regulations made there under;
- .2 the relevant requirements under IMO Conventions; and
- .3 the latest recommendations contained in ship to ship transfer guide (petroleum) issued by International Chamber of Shipping (ICS) and Oil Companies International Maritime Forum (OCIMF).

5.2. All vessels engaged in the STS operation shall be subject to Port State/Flag State inspections as and when deemed necessary to verify the standard of safety and seaworthiness. Any vessel which fails the Port State/Flag State Control inspection will be barred from engaging in the STS operations until all deficiencies have been rectified.

5.3. The vessel must be certified by Recognized Ship Classification Society.

5.4. All vessels must have an approved contingency plan and emergency response plan (ERP) to combat oil spills.

5.5. All vessels including FSO/FSU shall be covered with sufficient insurance or other financial security in accordance with the International Convention on Civil Liability for Oil Pollution Damage, 1992. As such, vessels involved in the ship-to-ship transfer operation shall have a valid CLC certificate.

- 5.6. Vessels which are not self-propelled are required to provide not less than two (2) dedicated standby tugs with minimum horsepower three thousand (3000) BHP. The STS Operator shall provide prove of the contract or agreement for tug(s) assistant;
- 5.7. For FSO/FSU, the status must be clearly stipulated in the certificate of registry.
- 5.8. An FSO/FSU used in the STS operation shall be treated as a terminal and shall be required to comply fully with the International Ship and Port Security (ISPS) Code. The terminal shall cover under the Port Security Manual.
- 5.9. An FSO/FSU used in the STS operation shall also comply with the International Convention on the Establishment of an International Fund for Compensation for Oil Pollution Damage (IOPC Fund) 1992 and shall be required to contribute to the IOPC Fund 92 if the amount of fuel/oil received exceeds one hundred fifty thousand (150,000) ton per year.
- 5.10. All vessels including FSO/FSU shall be equipped with an Automatic Identification System (AIS) onboard and which shall be in operation at all times.
- 5.11. All vessels are subjected to periodical auditing by the Marine Department amongst other contract, equipment, emergency response plan (ERP) training and tug(s) assistant.

6. Mooring Arrangement.

- 6.1. The STS Operator shall ensure all vessels acquire a standby anchor while anchored and shall not move from the designated point.
- 6.2. The STS operator must provide at least two (2) tugs during mooring and unmooring operation with visiting vessel.
- 6.3. At any other time, the STS operator shall provide at least one (1) tug on continuous standby.

7. Report of Arrival and Departures.

Every vessel involved in the STS transfer operation shall be required to report its arrival and departure to the Marine Department in the relevant forms. A vessel entering port solely for the purpose of the STS transfer operation is required to stipulate such purpose in the appropriate column of the MSS1 form. Arrival/ departure reports shall be submitted to the nearest Port Office.

8. Records of Transshipment.

- 8.1. The STS Operator shall keep all transshipment records on board the vessel and shall submit the said records to the Marine Department monthly. The records shall give details on types of cargoes transshipped, loading/discharging vessel, time of loading/discharging and other particulars relating to the operations and activities.
- 8.2. The STS Operator shall submit an annual report to IOPC. A copy of the annual report shall be sent to the Marine Department to be verified with the record submitted monthly.

9. Marine Environmental Protection.

- 9.1. There shall be NO discharge from any vessel that is involved in the STS operation. Any discharge into the sea of oil or oily mixture, noxious liquid substance or other substances shall be strictly prohibited.
- 9.2. Vessels involved in STS Operation shall retain on board all sludge, dirty ballast, tank washing waters and other oily residues and mixtures and they shall not be discharged into the sea.
- 9.3. The disposal into the sea of all types of garbage, including but not limited to plastic based materials, paper products, rags, glass, metal, bottles, crockery, incineration ash, lining, packing materials and food wastes shall be prohibited. The vessel shall keep and maintain garbage disposal record properly in the garbage record book.

- 9.4. The discharge of sewage into the sea shall not be permitted due to the distance from the land and the nature of the vessel operating STS. Vessel shall keep and maintain sewage disposal record properly in the sewage record book.

10. **Oil Spill Response Capability.**

The STS Operator shall comply with all the recommendations made under the oil spill contingency plan preparedness audit report conducted by Marine Department. The STS Operator shall also provide-

- .1 A contingency plan which shall be in line with the National Oil Spill Contingency Plan. The oil spill contingency plan shall be submitted to the Marine Department for auditing before the commencement of the STS operation. All non-compliances to the audit are to be closed in a manner satisfactory to the Marine Department;
- .2 Minimum number of equipment, facilities and manpower as required and specified by the Marine Department;
- .3 Oil dispersants provided shall be type approved by the Department of Environment;
- .4 Oil booms provided shall be of ocean type boom and shall be of a length adequate to combat oil spill of stated capacity;
- .5 Such numbers of oil skimmers shall be provided with adequate capability to combat the stated oil spill capacity;
- .6 The Oil Spill Contractor(s) or Service Provider(s) engaged by the STS Operator shall provide and prove their capabilities in combating at least one thousand (1,000) tonnes of oil spill with the use of proper equipment. These Contractor(s) shall be approved by the Marine Department;
- .7 The oil spill response capability shall be able to respond to any emergency within 30 minutes at all time and on twenty-four (24) hours standby; and

- .8 The oil spill response equipment shall be provided at all times on a floating dedicated oil spill response vessel located nearest possible to the location of the STS operation.

11. Immigration and Customs Control.

All personnel including repair contractors, visitors and suppliers shall enter and exit the STS transfer designated area via Malaysian Customs, Immigration and Quarantine (CIQ) checkpoints. No person shall board any vessel involved in STS transfer operation directly from a foreign country. The master shall be responsible for any breach of this condition.

12. Licensing of Vessels.

All vessel engaged by the STS Operator to assist ship-to-ship transfer operation in the designated area shall be properly registered or licensed. All vessels below 500 GRT shall be licensed with the Marine Department. All registered vessels including FSO/FSU of more than 15 GRT involved in the ship-to-ship operation shall be required to obtain Domestic Shipping Licenses (DSL).

13. Access to Vessels.

In carrying out their duties and functions, Marine Department personnel may need to board vessels involved in the STS transfer operation from time to time. The STS Operator shall ensure that they are given the necessary assistance to board vessels engaged in the ship-to-ship transfer operation for that purpose.

14. STS Double Banking Procedures.

- 14.1. All vessels engaged in the ship-to-ship transfer operation in the designated area shall follow ship-to-ship transfer double banking procedures.

- 14.2. Only one vessel or tug can be secured on either side (port OR starboard) of any FSO/FSU or “mother vessel” at any given time.

15. Withdrawal of Approval.

The Marine Department reserves the right to withdraw the approval granted to the STS Operator to conduct ship-to-ship transfer operation of Fuel Oil, Gas Oil and Marine Diesel Oil without reason by giving a written notice to the STS Operator. Proof of posting the said notice shall be sufficient to be considered as a proof of acceptance by the STS Operator. The STS Operator shall terminate all operations and mobilize all vessels out of the designated area within 24 hours of receiving the said notice. The Marine Department shall not be liable for any loss incurred by the STS Operator as a result of the withdrawal of this approval.

16. Amendments to the Conditions of Approval.

The Marine Department reserves the right to add or amend the Conditions of Approval as and when necessary. The STS Operator shall be notified in writing by the Marine Department of the said changes and the new Condition shall come into effect within seven (7) days from the date of the notice.
